DEDAN KIMATHI UNIVERSITY MULEMBE ASSOCIATION

THE DeKUMSA CONSTITUTION



2024

Constitution review committee 2024

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THE DeKUMSA CONSTITUTION.

SECTION 1: NAME

1.1 The Association shall be called **DEDAN KIMATHI UNIVERSITY MULEMBE STUDENTS ASSOCIATION, (DeKUMSA**).

SECTION 2

A. AIMS AND OBJECTIVES

i. To provide social and educational support to member students and all students at large.

ii. To engage in community role in the society to the best of our abilities and serve the members in whole of the available ways.

iii. To be involved in projects that will improve the institution and better the living and academic standards of the members and other students at large.

iv. To encourage science fair and other activities to our members.

v. To provide our members with opportunity to learn about entrepreneurial spirit and technological trends.

vi. To create sources of funds through economic activities.

vii. To continue developing new ways to expand the association and increase the number of members who join each year.

B. DeKUMSA MOTTO

Together we can

C. DeKUMSA MISSION

To protect the DeKUMSA Members through professional policing and through leadership of community partnerships, while fostering the educational mission in the university.

D. DeKUMSA VISION

To support a climate of excellence, promote an organization that commands the respect of our peers and enrich the quality of life of our members in the university.

E. DeKUMSA LOGO

The Logo will be as below



- A handshake in form of a heart, left-side **RED** hand and right-side GREEN hand
- Two symmetrically placed yellow stars and downward ribbon with motto words: **"DeKUMSA TOGETHER WE CAN"**

SECTION 3: STATEMENT OF INTENT

i. The constitution, regulations, management and conduct of the association shall abide by all University College Union policies, and shall be bound by the DEDAN KIMATHI UNIVERSITY OF TECHNOLOGY CONSTITUTION AND REGULATIONS.

ii. The DeKUMSA stresses that it abides by the DEDAN KIMATHI UNIVERSITY OF TECHNOLOGY Union

iii. Equal Opportunity Policy and that club regulations pertaining to the membership of the club or election to the management of the association shall not contravene this policy.

iv. The association committee shall supply a code of conduct to the administration for approval, who shall sign it as the accepted Code of Conduct for the association.

v. DeKUMSA shall also be governed by the DeKUT standing orders, regulations and constitution.

SECTION 4

A. MEMBERSHIP:

The following will be qualified to become members of the association (DeKUMSA).

i. All persons who will have paid membership fee, which shall neither be refundable nor renewable.

ii. Membership shall be extended to professional fields, post graduates, staff members, alumni of DeKUT and others as approved by the association.

iii. All members shall be required to attend all the meetings organized by the society.

iv. All members shall be required to pay a subscription fee of fifty shillings (kshs.50) per semester

v. The membership fee shall be hundred shillings (kshs.100) within a period of one month after joining the association. However, this shall be subject to revision.

B. TERMINATION OF MEMBERSHIP

i. Any member who after completing his/her studies in DeKUT may terminate his/her membership by notifying the relevant authorities.

ii. Any member who engages in unlawful activities which are in any way in breach of Rules and Regulation of DeKUT and or in any way inconsistent to the rules and regulations of the association shall have his/her membership terminated.

iii. A member may willingly terminate his/her membership by notifying the concerned parties but however a refund of his/her financial contribution in association shall be one quarter of the total contribution made by that member

iv. Any member who becomes insane or dies.

SECTION 5: THE DeKUMSA COMMITTEE:

i. Any committee within the association shall be formed depending on the matter at hand to be dealt with or when the need arises.

ii. The committee shall be formed by the officials which shall be approved by the members.

iii. All committee members must be members of the association.

iv. The management of association shall be included in the club's committee.

v. Quorum of the committee shall be a half of the committee.

SECTION 6: OFFICE BEARERS

The association shall consist of the following officials:

A. Administration

i. Patron

ii. Assistant Patron

B. Executive committee

i. Chairperson.

ii. Vice chairperson.

iii. Treasurer

iv. Secretary

v. Public relations officer

vi. Organizing Secretary

vii. Captain

SECTION 7: DUTIES AND RESPONSIBILITIES OF OFFICE BEARERS:

a. CHAIRPERSON

i. The chairperson shall represent the DeKUMSA on all occasions and shall be responsible for making the association run according to the association's constitution and code of conduct.
ii. Shall chair all Executive and general meetings or delegate responsibilities to the relevant person to act on his/her behalf.
iii. Shall perform all other duties as may be directed by the association.
iv. Shall be a signatory to all financial transactions undertaken by the association.
v. Shall oversee duties carried by the other committee officials under him/her.
vi. Shall be representing the club interests to any other entity.
vii. Shall sign a financial Responsibility form, and shall be aware of the financial regulations.

b. THE VICE CHAIR PERSON:

i. Shall perform all the duties of the chairperson in the latter's absence or whenever so delegated.
ii. Shall prepare and present semester progress report at the annual general meeting
iii. Shall perform any other duties as assigned by the Association.
iv. Shall chair the welfare committee

c. SECRETARY:

i. Shall keep clear attendance records for determining member attendance.
ii. Shall be responsible for keeping the association's records in good order.
iii. Shall liars with organizing secretary to give notice to the members with agenda, venue, and time and date when calling for meetings.
iv. Shall register new club members.
v. Shall take and organize minutes during all association meetings.
vi. Shall be a signatory to all financial matters.

d. TREASURER:

i. The Treasurer shall carry out the day-to-day financial duties of the association.
ii. Keeping and maintaining all financial records and transactions.
iii. Shall prepare budget for each financial year in consultation with the executive committee.
iv. Shall be signatory of all financial transactions.
v. Shall coordinate fund raising, payment and accounting procedures for various activities in consultation with the relevant committee and persons. Such transaction must be approved by the executive committee in writing.
vi. Shall submit all financial records to the executive for auditing and thereafter make them available to any interested member to view them.

e. PUBLIC RELATIONS OFFICER:

i. Shall publicize the association both internally and externally as directed by DeKUMSA.
ii. Shall be the association official spokespersons.
iii. Publish and notify the association's manuals and notices.
iv. Shall be assigned duties as specified by the Executive committee.
v. Shall encourage an open dialogue policy in representing suggestions and grievances of its members.
vi. Shall encourage and facilitate activities that further the academic objectives of the members.

f. PATRON:

i. Shall be the adviser to the Executive committee and all Association members.
ii. Shall provide oversight of all association's deliberations.
iii. Shall approve the chairperson to the electoral commission and the commissioners appointed by the association members.
iv. Shall link the association with the DeKUT staff.

g. ASSISTANT PATRON

i. Shall perform all the duties of the Patron in the absence or whenever so delegated.

h. ORGANIZING SECRETARY

i. Shall be responsible for organizing all the events and activities of the association.
ii. Shall be responsible for booking venues for all the function and meetings of association.
iii. May perform other functions and duties as directed by the association.
iv. Will appoint the committee in charge of social activities in consultation with executive members.
v. Shall chair the committees in charge of social activities

i. CAPTAIN

i. Shall organize matches.
ii. Shall be responsible for organizing all games of the team.
iii. Shall be the team's official spokesman.
iv. Shall be responsible for keeping the team's balls, jersey and other stocks.
v. Carry out financial records and transactions of the team.
vi. Notify the chairperson on the progress of the team and the conduct of DeKUMSA players.

SECTION 8: MEETINGS:

i. A meeting may be called by the association's Executive committee.
ii. General meetings shall be held every week on Friday.
iii. Only registered members may be allowed to vote at general meetings.
iv. Decision shall be reached by a simple majority of the members present.
v. The general meeting should have at least two thirds of the members.

SECTION 9: WELFARE

The main reason for the welfare program is to enable DeKUMSA members to enable members to help those in need solve **simple** financial problems e.g. hospital bills, contributions towards the bereaved among other problems which shall be discussed by the welfare committee and deemed to qualify for welfare aid.

A. To get assistance, one must

i. Be an active member of DEKUMSA, who takes part in all DeKUMSA activities if possible.

ii. Have attended at least 70%(shall be reviewed by the committee based on the activeness of the member, and the financial challenge faced by the member) of the meetings
iii. One must have contributed towards the welfare

B. Welfare committee (Governance)

i. The committee should have at most 7 members
- **a.** The chairperson (Vice chair of the DeKUMSA execute committee)
- **b.** Treasurer
- **c.** The secretary
- **d.** One first year representative
- e. Other three representatives from the other counties

ii. To be chaired by the executive Vice Chairperson.

iii. Should have 5 representatives from each county (Other counties should join one or two of the counties with the least number of members).

iv. The committee should have (one secretary, one treasurer) from the five representatives of the counties. [The Welfare Treasurer and secretary are not part of the DeKUMSA executive].

v. Other committees' rules and regulations according to the constitution apply, if not specified in this act.

C. Committee Meetings

i. The committee should have at least one meeting per month.
ii. The meeting should be attended by at least five members (Welfare treasurer should be present during these meetings)

D. Decision Making

The final decision should be subject of consultation with relevant members and should be approved by the welfare chairman who is the executive vice chairperson.

E. Funding / Financing

i. DeKUMSA members will voluntarily contribute towards the welfare (a minimum of KES 100 per semester, this is subject to revision).
ii. Excess amount from other activities
iii. Alumnus, visitors/Guests
iv. Contribution could also include non-perishable products
v. DeKUMSA semester subscription fee

F. Transparency

I. The chairperson should give a weekly report to the executive
II. Unless the beneficiary of the welfare intends to refund the aid, their name should remain anonymous to the rest of the members who are not part of the executive or welfare committee

SECTION 10: THE ANNUAL GENERAL MEETING:

i. The AGM shall be held during the second semester of the academic year.
ii. AGM shall involve the presentation of the officers' reports for the past year.
iii. The ushering in of the next session.
iv. An agenda giving notice of the AGM must be circulated to all club members at least ten official days in advance.
v. Nomination of the association leaders must be posted at least ten five days in advance of the AGM and closed before the meeting.
vi. Each nomination shall require at least one proposer and two seconders who are registered members.
vii. The quorum of the AGM shall be one third of the registered members.
viii. In the event of there being no nomination for a post within the stipulated time then nominations may be accepted at the AGM.
ix. In the event that no person is voted in to a post or of resignation from a position the Chairperson will undertake the duties until such time as the post is filled. Elections to fill such vacant post should take place at the general meeting and shall be subjected to the same rules as per AGM.
x. The voting method and procedure at the general meeting shall be by secret balloting.
xi. A committee shall be formed to audit the books off accounts just before the AGM.

SECTION 11: FINANCE

i) DeKUMSA Treasurer will provide the relevant authorities with a detailed budget for the following

a. Academic year during the mid of the second semester of the academic year.
b. Budget for events shall be taken to the finance department for inspection and verification.
c. Funds will only be handed to the finance officer after being approved by the Executive committee.

SECTION 12: ELECTIONS

i. DeKUMSA election for various posts in the association will take place between the nomination period and the AGM.
ii. All Executive committee posts shall be contested for except for patron of whom he or she shall be nominated by members after the executive committee has been elected.
iii. The electoral commission five in number shall be chosen by members in a general meeting held before the fourth week of the second semester.

SECTION 13: ELIGIBILITY FOR CONTESTING EXECUTIVE COMMITTEE POST

i. One must be a registered member of the association.
ii. Must have been registered at the university for at least one semester and/or be an undergraduate student.
iii. The contestant must be a full-time student at the university.
iv. The contestant for the post of the chairperson must be in the second or third year of study for students with four-year course (second, third or fourth for five-year course students).
v. For post of finance secretary, the candidate must have the basic knowledge in accounting.
vi. Must be cleared by the electoral commission.
vii. Must have clean academic and disciplinary records.
viii. Must have attended at least 70% of DeKUMSA meetings

SECTION 14: ELECTION PROCEDURES

i. The electoral commission shall announce the dates and the time of the election during the fourth week of the second semester.
ii. The electoral commission shall announce the dates and the time for collection of nomination papers at a fee as agreed upon by the electoral commission.
iii. Dully completed nomination papers shall be submitted by the candidates to the office of electoral commission.
iv. Upon receipt and scrutiny, the electoral commission shall release the names of the nominated candidates within seven days of the nomination deadline.

v. The electoral commission shall register one nominated agent not later than four days before the polling day from each candidate.

SECTION 15: ELECTION RULES

i. Each candidate shall be allowed to register one agent with the electoral commission.

ii. Before casting a vote, the voters shall present his or her membership identification card for verification against the nominal roll against which the name shall be crossed.

iii. Each voter shall be issued with one ballot paper for each post being contested bearing the names for which the candidates vote by the mark" X" or using a **Tick.**

iv. Any voter who may require assistance shall inform the electoral officials who in presence of the candidates' agents shall assist the voter.

v. The voting shall be conducted in secrecy i.e.

a) All the candidates will be required to vote first then vacate the room

b) The electoral committee will set up voting points in an empty room

c) Voters will enter in a queue depending on the number of voting points present in the room

d) The candidates will be represented by their agents to help the voters incase assistance is needed

vi. Ballot papers with other marks apart from **"X"** or a **Tick** shall be considered null and void.

vii. The electoral commission shall seal any ballot box that is full in the presence of the candidate(s) or their agents.

viii. At the end of the voting time the electoral officials shall immediately seal all ballot boxes.

ix. The electoral commission chairperson will then open the ballot boxes and then the clerks shall start counting in the presence of the candidates or their agents.

x. The electoral commission chairperson will ensure that order and law is maintained during and after election period. Once counting is over the electoral commission chairperson shall officially announce the results.

xi. It will be the responsibility of each candidate to avail himself/herself and/or his/her agent at the counting venue.

xii. In case there is only one candidate contesting for the post: A ballot paper with a **YES**-**NO** option shall be provided; the said candidate must secure at least 51% of votes cast (**YES**). If the candidate fails to secure 51% of the votes the electoral commission chairperson shall declare new dates for a re-election.

xiii. In case of a tie, there will also be a re-election, the electoral commission shall set new dates for a re-election. Only the tying candidates will contest is such a repeat election.

xiv. The electoral commission chairperson shall submit to the relevant authority the names of the elected officials within 24hrs of announcing the election results.

SECTION 16. WHO MAY VOTE

i. All registered members of DeKUMSA are entitled to vote in the association elections.

ii. In the absence of valid membership ID card, the member shall be allowed to vote using student ID after being approved by the secretary of electoral commission of the association.

iii. The voter should be active DeKUMSA member

SECTION 17: DISQUALIFICATION

i. The electoral commission shall disqualify any candidate from contesting for any office if it establishes that the candidates;

ii. Forged nomination papers.

iii. Is in violation with University's code of conduct.

iv. Is not a registered member of the association.

v. Has not attended **at least 70** percent of the DeKUMSA meetings

vi. The decisions shall be communicated to the candidates in writing.

SECTION 18: DISSOLUTION OF THE EXECUTIVE COMMITTEE/RESIGNATION

i. Should members wish to remove any or all officials from the office a vote of no confidence may be initiated through precisely stated bearing names and signatures of at least two third of the association registered members.

ii. On dissolution the electoral commission in consultation with the patron will take care of the organization's affairs until new members are elected.

iii. In case of resignation/removal of a committee member;

a) The electoral commission shall declare the available seat vacant
b) Members will be asked to contest for the position
c) If the member who resigned from the position is of a gender with minimum number of members, the position should be contested by members of the same gender, otherwise the position should be contested by everyone

SECTION 19: AMENDMENTS

The constitution may be revised by a proposed amendment presented in writing at a general meeting and approved by 2/3 of the members present. Members must be given at least 24hrs notice that such a vote will be held at the meeting.

i. The amendment of the constitution shall be approved at the student's general meeting.
ii. Any part or whole of this constitution shall not be deleted, altered or amended without the approval of the members in a general meeting.
iii. After the approval the committee shall constitute a review commission in due time.

SECTION 20: APPRECIATION

i. DeKUMSA shall award letters/ certificates of appreciation to:
ii. DeKUMSA office bearers
iii. Any committee members.
iv. Active members as agreed upon by all committee members.
v. DeKUMSA executive committee shall organize at least a social trip to all its members once every academic year.

This constitution has been approved in accordance with the above conditions and accepted as a constitution for **DEDAN KIMATHI UNIVERSITY MULEMBE STUDENT ASSOCIATION**,

	NAME	SIGN	DATE
CHAIRMAN.....		.....	.....
VICE CHAIRMAN.....		.....	.....
PATRON.....		**.....**	**.....**
DEAN OF STUDENTS.....		**.....**	**.....**